

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD. ,

RESPONDENT.

JOINT STATUS REPORT

Pursuant to the May 2, 2025 Order, Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, HMM Co., Ltd. f/k/a Hyundai Merchant Marine Co., Ltd. (“HMM”) (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.

The Parties have exchanged production specifications and a production protocol for review with ESI experts at our firms in light of the scope of documents. Progress has been made in this respect, along with an agreement to a production of documents on a rolling basis, leading to at least a substantial production by July 9. This notwithstanding, the Parties anticipate requiring significant additional time to meet the discovery obligations set forth in the May 2 Order for the

reasons set forth below. As a result, the Parties anticipate moving for a schedule extension following efforts by the Parties to narrow and resolve disagreements over discovery requests in the coming days.

With regards to securing documents and ESI from custodians located in Korea, Korean law requires that written consent be provided by each custodian prior to the release of documents and/or ESI to counsel located in the US for eventual production in this proceeding. At this time, HMM's counsel is working to secure consent from each of five (5) HMM custodians located in Korea. As a result, the collection of materials has been limited to eight (8) HMM custodians located in the US, and the efforts to collect data located in the US are ongoing. Furthermore, a number of the documents and ESI secured from custodians located in Korea (as well as much of the materials collected in the US) will require translation, including through electronic means initially, that will cause additional delays in preparing and producing such materials.

In addition to constraints posed by the location of documents and data in Korea, HMM anticipates further delays resulting from the scope of the discovery requests served by SEA. These include requests for information and documents relevant to 96,000 charges and corresponding shipments; documents and information for a period extending from 2018 until present; and numerous requests for categorical documents and/or communications that would result in the production of millions of pages of material if produced. While HMM anticipates that the productions may be limited by objections and negotiation between counsel, efforts by the Parties to narrow requests and/or the use of stipulations or requests for admission, the amount of materials to be collected, reviewed, and produced by HMM will be massive and is expected to exceed one (1) terabyte of data.

With respect to SEA, it has collected the SEA data concerning HMM moves of SEA cargo (all of which is located within the United States), and is processing it so that it can meet the July 9 deadline. Based on previous experience, HMM's data in Korea, and Korean decision-makers at HMM are likely to have relevant information. With the additional time HMM requires for service, SEA will need the appropriate time to make translations of documents and assess the materials. While SEA will begin to analyze the HMM production of information domestically, the stilted time and review of materials will delay depositions. SEA will take depositions of HMM personnel in Korea and domestically, and estimates the total to be between 5-10 witnesses. While SEA will defend witnesses that are located throughout the United States.

For the reasons set forth above, the Parties respectfully request the Presiding Officer's forbearance on providing all of the information sought, as listed in the May 2 Order. That is, with regret the parties are unable to provide the details concerning "the number of custodians searched by each party and any custodians remaining to be searched; the volume of documents/ESI returned from those searches; the volume of documents/ESI reviewed; the volume of documents/ESI produced; any obstacles encountered in reviewing or producing documents/ESI; anticipated number of depositions for each party and any obstacles related to scheduling those depositions." The Parties submit that they can fulfill this request by Friday, July 11, as they will be using all available time to finalize an ESI protocol, settle the number of custodians from whom documents will be collected, resolve constraints associated with collecting materials from Korea, and conducting a review and further preparation of documents prior to producing same.

These constraints notwithstanding, HMM has undertaken to collect materials from thirteen (13) custodians, including at least a terabyte of data to be reviewed. With respect to the amount of data that will be produced by HMM, this has not yet been determined as collection of data is

still ongoing. With respect to SEA's intention to take depositions of HMM personnel in Korea, as a result of anticipate travel, the Parties may face challenges and/or delays in scheduling these depositions. Finally, HMM anticipates that it will take five (5) or fewer depositions from SEA witnesses and possibly depose a third-party witnesses identified following the exchange of documents by the Parties.

Once written discovery is complete, the Parties will have the opportunity to take stock of the documents produced and this will inform the deposition phase. For example, the "anticipated number of depositions" is likely to be impacted by the production of documents and assessing the persons involved in the day-to-day activities during the relevant period.

Finally, we note the Presiding Officer's instruction and "encourage[ment] to agree to limitations on discovery" and discovery generally. The steps taken by the Parties to agree on the parameters of discovery were designed to meet this salutary mandate.

The Parties accordingly propose to submit a further JSR on July 11, 2025, or such other date as the Presiding Officer determines, reporting on the results of the Parties' efforts as described above and proposing a schedule for concluding discovery.

Dated: June 20, 2025

Respectfully Submitted,

HOLLAND & KNIGHT LLP

By: /s/ Christopher R. Nolan
Christopher R. Nolan, Esq.
Marisa Marinelli, Esq.
31 West 52nd Street
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com
Marisa.marinelli@hklaw.com

Gerald A. Morrissey III, Esq.
Kristine O. Little, Esq.
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 955-3000
gerald.morrissey@hklaw.com
kristine.little@hklaw.com

*Counsel to Samsung Electronics
America, Inc.*

COZEN O'CONNOR

By: /s/ Christopher Raleigh
Neil Quartaro, Esq.
Joshua P. Stein, Esq.
Christopher Raleigh, Esq.
Kathryn Sobotta, Esq.
175 Greenwich Street, 55th Floor
3 WTC
New York, NY 10007
NQuartaro@cozen.com
JStein@cozen.com
KSobotta@cozen.com

*Counsel to HMM Co., Ltd. f/k/a Hyundai
Merchant Marine Co., Ltd.*